

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Joy Almeyda	Team: Squad #01	CCRB Case #: 201310595	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 11/01/2013 11:15 PM	Location of Incident: Flatbush Avenue and Church Avenue	18 Mo. SOL 5/1/2015	Precinct: 70		
Date/Time CV Reported Sun, 11/10/2013 11:13 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 11/10/2013 11:13 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Anthony Biondolillo	17627	943004	GANG BS
2. DT3 Aleksandr Pasyukov	6439	947328	GANG BS
3. POM Paul Dieugenia	13223	946929	GANG BS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jeffrey Smith	13574	942918	GANG BS

Officer(s)	Allegation	Investigator Recommendation
A . POM Anthony Biondolillo	Abuse: PO Anthony Biondolillo frisked § 87(2)(b)	A . Substantiated
B . POM Paul Dieugenia	Abuse: PO Paul Dieugenia frisked § 87(2)(b)	B . Unsubstantiated
C . POM Paul Dieugenia	Abuse: PO Paul Dieugenia searched § 87(2)(b)	C . Unsubstantiated
D . POM Paul Dieugenia	Abuse: PO Paul Dieugenia searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	D . Unsubstantiated
E . POM Anthony Biondolillo	Abuse: PO Anthony Biondolillo searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	E . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On November 10, 2013, § 87(2)(b) filed this complaint on behalf of himself and his brother, § 87(2)(b) via the agency's Call Processing System. On November 1, 2013, at approximately 11:10 p.m., § 87(2)(b) and § 87(2)(b) were driving on Flatbush Avenue in Brooklyn, when they were stopped by officers from Gang Brooklyn South, and the following allegations resulted:

- **Allegation A: Abuse of Authority—PO Anthony Biondolillo frisked § 87(2)(b)**
§ 87(2)(g)
Therefore, it is recommended that **Allegation A** be closed as *substantiated*.
- **Allegation B: Abuse of Authority—PO Paul Dieugenio frisked § 87(2)(b)**
- **Allegation C: Abuse of Authority—PO Paul Dieugenio searched § 87(2)(b)**
- **Allegation D: Abuse of Authority—PO Paul Dieugenio searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.**
- **Allegation E: Abuse of Authority—PO Anthony Biondolillo searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.**
§ 87(2)(g)

Therefore, it is recommended that **Allegations B, C, D, and E** be closed as *unsubstantiated*.

- § 87(4-b) § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(b) and § 87(2)(b) were arrested and as a result, this case was not eligible for mediation.

Results of Investigation

Civilian Statements

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a black male, who § 87(2)(b) has black hair and brown eyes.

On December 11, 2013, § 87(2)(b) was interviewed at the CCRB (encl. 9A-F). On July 7, 2014, a follow-up call was made to § 87(2)(b). His statements are summarized below.

On November 1, 2013, at approximately 11:00 p.m., § 87(2)(b) and his brother, § 87(2)(b) left the Flatbush YMCA, located on Flatbush Avenue and Newkirk Plaza in Brooklyn, after playing basketball. § 87(2)(b) drove his white Nissan Altima from

the YMCA with § 87(2)(b) in the front passenger's seat. On July 7, 2014, § 87(2)(b) told the undersigned that there were an additional two occupants in the vehicle, who were friends of friends that he had played basketball with. § 87(2)(b) did not know their names or have contact information for them. § 87(2)(b) was driving for approximately fifteen minutes on Flatbush Avenue, and drove between thirty five and forty miles per hour throughout the drive. § 87(2)(b) was not swerving and used his turn signal every time it was necessary. When the brothers reached Flatbush Avenue and Snyder Avenue, a dark sedan pulled in front of them. The dark sedan came to a sudden stop at Flatbush Avenue and Church Avenue, which forced § 87(2)(b) to stop. At no point did the unmarked sedan activate its lights or sirens.

Two plainclothes officers, identified through investigation as PO Anthony Biondolillo and PO Jeffrey Smith of Gang Brooklyn South, exited from the two front seats of the vehicle with their flashlights out. PO Biondolillo was on the passenger's side and PO Smith on the driver's side and they approached those same sides on the § 87(2)(b)'s vehicle.

The § 87(2)(b) brothers each rolled their window down and PO Biondolillo asked § 87(2)(b) where he was coming from and where he was going. § 87(2)(b) responded that he was coming from the YMCA and headed to get food. § 87(2)(b) was wearing a basketball jersey, sweatpants with pockets, and boots and § 87(2)(b) was wearing a jersey, and basketball shorts.

PO Biondolillo asked § 87(2)(b) how old he was, to which § 87(2)(b) responded, "sixteen." In his CCRB interview, § 87(2)(b) stated that he was § 87(2)(b) old at the time of the incident, however, he was nervous because he had never been pulled over before, so he lied. PO Biondolillo asked § 87(2)(b) to step out of the vehicle, which he did.

After § 87(2)(b) got out of the vehicle, he noticed numerous police vehicles at the scene. The cars were a mix of marked and unmarked cars and some of the responding officers were in uniform and some were in plainclothes.

When § 87(2)(b) exited the vehicle, he was instructed to put his hands on the roof of the car, as was § 87(2)(b) so they were facing one another. PO Biondolillo proceeded to pat down § 87(2)(b) legs, chest, and feet. Another officer, identified through investigation as PO Paul Dieugenia of Gang Brooklyn South, conducted what appeared to be the same thing to § 87(2)(b) on the opposite side of the vehicle. PO Biondolillo did not go inside of § 87(2)(b)'s pockets. § 87(2)(b) had nothing inside of his pockets.

Following the frisk, PO Biondolillo turned § 87(2)(b) around so that he was facing away from the vehicle and his brother. PO Biondolillo walked away from § 87(2)(b) and went to the other side of the vehicle. § 87(2)(b) remained standing outside of the passenger's side door for approximately eight to ten minutes.

Towards the end of the eight to ten minutes, PO Biondolillo asked § 87(2)(b) if he had anything illegal on him. § 87(2)(b) said he did not, at which point PO Biondolillo and PO Dieugenia entered the Wiltshires' vehicle. They searched inside of the pockets on the inside of the doors and searched the glove compartment, at which point a small knife was discovered inside. The knife is red and is only about one inch to an inch and a half long. In his CCRB statement, § 87(2)(b) was asked how the knife opens, and he said it did not open with gravity, but he was not sure how it opens.

§ 87(2)(b) was called over to the driver's side of the vehicle where § 87(2)(b) was standing. PO Biondolillo and PO Dieugenia asked whose knife it was and § 87(2)(b) said it was his. § 87(2)(b) was then placed in handcuffs. The officers asked § 87(2)(b) for his age and he explained that he was actually eighteen years old. PO Biondolillo told § 87(2)(b) to put his hands behind his back, which he did. § 87(2)(b) was then handcuffed without incident and led into the first police vehicle that arrived. At no point did any officer ask § 87(2)(b) any questions about the knife.

A couple of minutes after § 87(2)(b) was placed inside of the police vehicle, he was transported to the 70th Precinct stationhouse. § 87(2)(b) did not see which vehicle § 87(2)(b) was placed into. § 87(2)(b) was transported by an unknown driver (identified through investigation as PO Aleksandr Pasyнков of Gang Brooklyn South) and PO Dieugenia in the front passenger's seat.

Complainant/victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a black male, who § 87(2)(b) has black hair and black eyes. § 87(2)(b)

On February 19, 2013, § 87(2)(b) was interviewed over the telephone (encl. 10A-D). § 87(2)(b)'s statement § 87(2)(g) and is summarized below.

On November 1, 2013, at approximately 10:55 p.m., § 87(2)(b) and § 87(2)(b) left the Flatbush YMCA and got into their father's car, which is a white 2006 Nissan Altima. § 87(2)(b) drove and § 87(2)(b) was in the front passenger's seat. There were no additional occupants. On July 7, 2014, a follow-up call was made to § 87(2)(b) who reiterated that there were no additional occupants.

§ 87(2)(b) drove north on Flatbush Avenue for about five minutes. He drove approximately thirty to thirty five miles per hour and denied weaving in and out of lanes.

As § 87(2)(b) passed Snyder Avenue, he noticed a dark sedan behind him, with activated turret lights. § 87(2)(b) was in the left lane of a two lane street and he made his way to the right lane to pull over. However, before § 87(2)(b) pulled over, another unmarked police car got in front of him. § 87(2)(b) pulled over before passing Church Avenue and by the time he pulled over, there was one police vehicle in front of his, one behind, and one that arrived to the side as § 87(2)(b) actually stopped his car.

Two plainclothes officers exited from the vehicle in front of his and approached § 87(2)(b)'s car. One officer went to the driver's side, identified through investigation as PO Dieugenia, and an officer whom § 87(2)(b) identified by name as PO "Smith" approached on the passenger's side. § 87(2)(b) stated that he got the name "Smith" after asking the officer at the stationhouse, however, this officer was subsequently identified through investigation as PO Biondolillo. PO Dieugenia asked § 87(2)(b) for his license, which § 87(2)(b) provided. PO Dieugenia then asked § 87(2)(b) to turn his vehicle off and step out. § 87(2)(b) complied.

PO Dieugenia asked § 87(2)(b) how old he was, where he was coming from, and where he was going. § 87(2)(b) answered each of the questions. PO Dieugenia then

patted § 87(2)(b) down, starting in the back and moving forward. § 87(2)(b) was wearing basketball shorts with pockets and a t-shirt. § 87(2)(b) had nothing in his pockets. PO Dieugenia put his hands into both of § 87(2)(b)'s pockets.

Following the search, PO Biondolillo asked § 87(2)(b) to get out of the vehicle. § 87(2)(b) stated that § 87(2)(b) was then searched, but § 87(2)(b) explained that he did not actually observe the search, he just heard § 87(2)(b) ask why he was being searched.

At this time, there were approximately eight plainclothes officers at the scene, standing near § 87(2)(b)'s vehicle, however, only PO Dieugenia and PO Biondolillo interacted with the § 87(2)(b) brothers.

PO Dieugenia told § 87(2)(b) to move from the driver's door, which was closed at this time. § 87(2)(b) moved over and stood near the rear driver's side door. PO Dieugenia then went into § 87(2)(b)'s vehicle through the driver's side door. PO Biondolillo also went into the vehicle, through the front passenger's side door. § 87(2)(b) could see the officers inside because he was standing next to the rear driver's side window and the windows are not tinted.

PO Dieugenia and PO Biondolillo were inside of the car for approximately ten minutes. However, early on into the search, PO Biondolillo found a knife in the glove compartment. § 87(2)(b) explained that he worked for the post office and uses a knife to open boxes and mail. He was running to get home after work and accidentally brought his knife home with him. When he realized, he put the knife in his glove compartment. The knife has an approximate two inch blade, which is pulled to open, and has a black handle. PO Dieugenia and PO Biondolillo questioned § 87(2)(b) about the knife while they were in the car and § 87(2)(b) explained that he uses it for work. After the officers found the knife, they continued to search for a while, including going into the back seats through the back doors. § 87(2)(b) told the officers the knife was his from the moment that the officers discovered it.

Following the search, the officers instructed § 87(2)(b) to get back into his vehicle. PO Biondolillo handed § 87(2)(b) his license and his car keys. PO Dieugenia then instructed § 87(2)(b) to come to the driver's side of the car. PO Dieugenia questioned § 87(2)(b) about his age, but § 87(2)(b) was nervous and waited a few seconds before answering the questions. § 87(2)(b) believed that PO Dieugenia thought § 87(2)(b) was lying due to his delayed responses. PO Dieugenia asked § 87(2)(b) for his identification, but § 87(2)(b) did not have one. PO Dieugenia then told § 87(2)(b) that he was under arrest. PO Dieugenia also told § 87(2)(b) to get out of the vehicle because he was also under arrest.

§ 87(2)(b) was handcuffed and placed in in one of the unmarked vehicles. PO Dieugenia got in the backseat with § 87(2)(b) and another officer drove. § 87(2)(b) was transported in a different vehicle.

PO Biondolillo completed § 87(2)(b)'s arrest processing and at the stationhouse. § 87(2)(b) and § 87(2)(b) were released from the stationhouse and allowed to take their car home. When § 87(2)(b) returned to the vehicle, it was ransacked and items in the trunk were clearly moved around.

§ 87(2)(b) did not get his knife back and did not receive any vouchers or paperwork for it. At the time of his CCRB interview, § 87(2)(b) did not know what he was charged with. He had received a piece of paper with a court date, but no listed charges. When he appeared at his court date, all of the charges against him and § 87(2)(b) were dismissed.

Attempts to Contact Civilians

According to police documentation, there were four additional occupants besides § 87(2)(b) and § 87(2)(b) inside of § 87(2)(b)'s vehicle upon the stop. However, there is no police documentation providing any identifying information for any of those individuals and § 87(2)(b) did not acknowledge their presence. § 87(2)(b) acknowledged the presence of two additional occupants, only on a follow up call, and he said he had no names or contact information for either of them. With no additional means to identify the additional occupants in the vehicle, no statements could be obtained from them.

NYPD Statements:

Subject Officer: PO ANTHONY BIONDOLILLO

- PO Biondolillo was § 87(2)(b) at the time of the incident. He is a white male, who § 87(2)(b) has brown hair and brown eyes.
- PO Biondolillo worked from 3:27 p.m., on November 1, 2013, until 5:30 a.m., on November 2, 2013. He was assigned to enforcement response auto, with PO Jeffrey Smith, was dressed in plainclothes, and worked out of an unmarked grey Subaru sedan, number § 87(2)(f), § 87(2)(g).

Memo Book (encl. 11A-D):

At 11:00 p.m., while traveling westbound on Flatbush Avenue, PO Biondolillo observed a white 2006 Nissan sedan traveling eastbound on Flatbush Avenue at a high rate of speed, changing lanes without signaling. At 11:10 p.m., PO Biondolillo noted a car stop in regards to the aforementioned observation, in front of 916 Flatbush Avenue. The vehicle had six male occupants. PO Biondolillo recovered a knife from the right jacket pocket of the front passenger, § 87(2)(b) which he said he uses to protect himself.

PO Dieugenia recovered a gravity knife from the center console, which the driver claims he uses for protection. The driver was § 87(2)(b). At 11:15 p.m., PO Biondolillo had two under arrest, § 87(2)(b) and § 87(2)(b). The four rear passengers were released without incident. PO Biondolillo transported § 87(2)(b) to the 70th Precinct stationhouse while PO Dieugenia and PO Pasyukov transported § 87(2)(b).

At 11:30 p.m., PO Biondolillo arrived at the 70th Precinct stationhouse and at 11:55 p.m., he conducted warrant checks for both prisoners, which were negative. PO Biondolillo vouchered two knives from this incident, a gravity knife and a folding knife (PCI# § 87(2)(b) and PCI# § 87(2)(b)).

Arrest Reports:

§ 87(2)(a) 160.50, § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

CCRB Statement:

On June 25, 2014, PO Biondolillo was interviewed at the CCRB (encl. 14A-D). His statement is summarized below.

On November 1, 2013, at approximately 11:00 p.m., PO Smith drove PO Biondolillo in the vicinity of Flatbush Avenue, following PO Dieugenia and PO Pasynkov who were driving in front. PO Biondolillo explained that there had recently been a slew of vehicles taking off upon being stopped, so the officers caravanned in order to avoid suspects fleeing the scene.

While driving westbound on Flatbush Avenue, PO Biondolillo noticed a white Nissan sedan driving very fast eastbound on Flatbush Avenue. PO Dieugenia and PO Pasynkov made a U-turn, and PO Smith followed. PO Biondolillo and PO Smith had no communication with PO Dieugenia or PO Pasynkov regarding stopping the vehicle, but because the vehicle was driving so fast, PO Biondolillo assumed that PO Dieugenia and PO Pasynkov made the same observations.

PO Biondolillo observed the Nissan for about thirty seconds to a minute before PO Dieugenia and PO Pasynkov's car's lights and sirens were activated. In that time, the Nissan switched lanes at least twice without signaling. PO Dieugenia and PO Pasynkov activated their vehicle's lights and sirens and pulled behind the white Nissan and PO Biondolillo and PO Smith pulled in front of the Nissan so that it was boxed in.

PO Biondolillo and PO Smith exited their vehicle and PO Biondolillo approached the Nissan on the passenger's side and PO Smith approached on the driver's side. PO Dieugenia and PO Pasynkov also approached the Nissan, PO Dieugenia on the driver's side and PO Pasynkov on the passenger's side.

As PO Biondolillo approached the vehicle, he looked through the front windshield and saw movement inside of the car. There was a street light in the area, but it was dark. However, PO Biondolillo saw that there were four individuals in the back seat and he could see their silhouettes moving. PO Biondolillo could not describe these movements in further detail.

§ 87(2)(b) was sitting in the front passenger's seat and as PO Biondolillo approached, § 87(2)(b) asked what the problem was. PO Biondolillo explained to § 87(2)(b) that he was not in trouble because he was not the driver. During his CCRB interview, PO Biondolillo explained that because there were six civilians and only four officers and because PO Biondolillo did not know what the civilians had in the car, the officers were at a tactical disadvantage. As such, PO Biondolillo asked § 87(2)(b) to get out of the car. One of the rear passengers motioned to get out, but PO Biondolillo told him to stay inside, as he wanted the occupants to exit one at a time.

Prior to § 87(2)(b) exiting, PO Biondolillo asked him where he was coming from. § 87(2)(b) said he was coming from the gym. PO Biondolillo explained that he was going to ask him to step out, that he would not search him, and asked if he had any weapons on him. § 87(2)(b) stated that he did not have any weapons on him.

When § 87(2)(b) exited the vehicle, PO Biondolillo asked him to turn around and put his hands on the roof of the car, which § 87(2)(b) did. PO Biondolillo told § 87(2)(b) that he did not care if he had marijuana on him, but he wanted to make sure § 87(2)(b) Wilshire did not have a weapon. § 87(2)(b) reiterated that he did not have any weapons. PO Biondolillo then frisked § 87(2)(b) who was wearing a jacket and shorts. PO Biondolillo frisked § 87(2)(b) to make sure that he was not armed. PO Biondolillo did

not see any bulges on § 87(2)(b) and PO Biondolillo said there were no factors that led him to believe that § 87(2)(b) was armed.

When PO Biondolillo frisked § 87(2)(b) he felt a hard object that felt like a knife in § 87(2)(b)'s outside right jacket pocket. PO Biondolillo asked if the object was a knife and § 87(2)(b) said it was not. PO Biondolillo felt the object from outside of the jacket again and told § 87(2)(b) that it felt like a knife. During his CCRB interview, PO Biondolillo said he knew that the object felt like a folding knife, but did not recall any other details regarding the knife.

PO Biondolillo put his hand into § 87(2)(b)'s right outer jacket pocket and removed the knife. PO Biondolillo asked § 87(2)(b) why he had the knife and § 87(2)(b) said for protection. PO Biondolillo asked what he needed protection from and § 87(2)(b) said his mother told him to carry the knife so if anyone jumped him or attacked him he could use it against them.

PO Biondolillo told § 87(2)(b) to stand near the rear of the vehicle. § 87(2)(b) was not handcuffed. PO Biondolillo kept the knife. The knife itself was a legal knife, however, because § 87(2)(b) said he would use it against other individuals, § 87(2)(b) could have been arrested at this point.

PO Biondolillo instructed the other occupants of the vehicle to exit one by one and he frisked or helped frisk at least one of them. PO Biondolillo frisked the other occupant or occupants to make sure that they did not have weapons.

At some point after frisking § 87(2)(b) PO Dieugenia called from the other side of the car and said that he found a knife inside the car. PO Dieugenia opened the knife using gravity and PO Biondolillo determined it was an illegal knife. PO Biondolillo asked where the knife was recovered and PO Dieugenia said from the center console. However, PO Biondolillo did not see PO Dieugenia recover the knife. PO Biondolillo did not see any officer enter the vehicle and he denied entering the vehicle at any point.

PO Dieugenia asked who the knife in the car belonged to and § 87(2)(b) the driver, said it was his and he uses it for protection. § 87(2)(b) was most likely frisked, but PO Biondolillo did not see any officer frisk or search him at the scene and he did not frisk or search him at the scene.

After all of the occupants exited the vehicle, the officers placed the § 87(2)(b) brothers under arrest for § 87(2)(a) 160.50. PO Biondolillo explained that § 87(2)(b) was compliant and was nervous that this incident would affect his driver's license, so PO Biondolillo told him he would use his discretion regarding the traffic violations, but because the knife was a penal code violation, he could not use discretion.

PO Biondolillo and PO Smith transported § 87(2)(b) to the 70th Precinct stationhouse, while another officer took § 87(2)(b) back. One of the officers there took the Nissan back to the stationhouse, but PO Biondolillo did not know which officer took it. PO Biondolillo did not believe any uniformed officers or officers from his command arrived on scene.

At the stationhouse, the Nissan was searched, but not by PO Biondolillo and he did not know who conducted the search. At the stationhouse, PO Biondolillo vouchered both knives. PO Biondolillo released the § 87(2)(b) brothers with DATs, after receiving permission from his sergeant.

Witness Officer: PO JEFFREY SMITH

- *PO Smith was § 87(2)(b) at the time of the incident. He is a white male, who § 87(2)(b) has brown hair and hazel eyes.*
- *PO Smith worked from 5:27 p.m., on November 1, 2013, until 5:30 a.m., on November 2, 2013. He was assigned to Brooklyn South Gang enforcement, with PO Biondilillo, dressed in plainclothes, and assigned to a grey Subaru sedan, number § 87(2)(f).*

Memo Book (encl. 15A-C):

At 11:10 p.m., PO Smith noted a car stop in front of 916 Flatbush Avenue in Brooklyn within the confines of the 70th Precinct. There were six male occupants in a white Nissan.

At 11:15 p.m., PO Biondilillo had two under arrest for § 87(2)(a) 160.50. At 11:30 p.m., PO Smith arrived at the 70th Precinct in order to process the arrests. At 2:10 a.m., the prisoners were released with DATs.

CCRB Statement:

On June 25, 2014, PO Smith was interviewed at the CCRB (encl. 16A-C). His statement § 87(2)(g) is summarized below.

PO Smith corroborated PO Biondilillo's testimony regarding his observations prior to the stop and the formation in which the officers stopped the § 87(2)(b)'s vehicle.

As PO Smith approached the vehicle, he saw a lot of movement inside. PO Smith described the movement as fidgeting, but he could not describe the movement any further and did not recall if any of the occupants were reaching anywhere in the vehicle. PO Smith also observed that there were six occupants in total, four males seated in the backseat of the sedan.

One of the officers, PO Smith did not recall who, asked the occupants to step out one by one. PO Smith did not recall who stepped out first, but he recalled that the driver, identified through investigation as § 87(2)(b) was compliant and cooperative. PO Smith did not frisk or search § 87(2)(b). PO Smith had no direct interaction with any of the occupants of the vehicle and did not frisk or search any of them.

After the occupants were asked to step out of the vehicle, PO Smith was informed by one of the officers at the scene, he did not recall who, that two knives were recovered. PO Smith did not know where the knives were recovered from or who recovered them. PO Smith did not see any officer go into the car and did not see when the knives were recovered.

In the time when the occupants exited the vehicle and when PO Smith was informed that knives were recovered, PO Smith was standing in between the front and rear door on the driver's side. PO Smith said the only police action he took was to "make sure nothing crazy happened" and be a physical presence.

PO Smith noted that there were several frisks that took place on the passenger's side of the vehicle, conducted by PO Biondilillo. PO Smith did not observe any frisks on the driver's side of the vehicle. PO Smith did not recall how many occupants exited on the passenger's side and how many exited on the driver's side.

Two of the six individuals were placed under arrest and PO Smith believed those two were placed under arrest because they were the ones with the knives. However, PO Smith did not hear them say that the knives were theirs.

PO Smith did not recall any of the officers going into the vehicle at the scene and PO Smith denied going inside. PO Smith transported one of the arrested individuals back to the stationhouse, but he did not recall which person he took. PO Smith did not recall if any other officers from his command arrived at the scene and did not see any uniformed officers present. PO Smith did not know what happened to the Nissan and was not sure if it was taken back to the stationhouse.

PO Smith had no interaction with either arrested individual at the 70th Precinct stationhouse.

Subject Officer: PO PAUL DIEUGENIA

- *PO Dieugenia was § 87(2)(b) at the time of the incident. He is a white male, who § 87(2)(b) has black hair and brown eyes.*
- *PO Dieugenia worked from 5:27 p.m., on November 1, 2013, until 2:03 p.m., on November 2, 2013. He was assigned to gang enforcement, with PO Aleksandr Pasyнков, dressed in plainclothes, and worked out of an unmarked vehicle, number § 87(2)(b).*

Memo Book (encl. 19A-C):

At 11:15 p.m., PO Dieugenia noted a car stop in front of 916 Flatbush Avenue in Brooklyn. A weapon was recovered from the center consol. PO Biondilillo had two individuals under arrest, § 87(2)(b) and § 87(2)(b). The vehicle was stopped for reckless driving. The two individuals were transported to the 70th Precinct stationhouse and PO Dieugenia resumed patrol.

CCRB Statement:

On July 2, 2014, PO Dieugenia was interviewed at the CCRB (encl. 20A-B). PO Dieugenia barely recalled this incident and his statement is summarized below.

On November 1, 2013, at approximately 11:15 p.m., PO Dieugenia and PO Pasyнков were caravanning with other officers, doing enforcement. PO Dieugenia did not recall if he was driving or in the passenger's seat. A vehicle stop was initiated, but PO Dieugenia did not recall if he and PO Pasyнков initiated the stop or if other officers did. PO Dieugenia did not recall what factors led to the vehicle stop. During his CCRB interview, PO Dieugenia was asked about his memo book which listed that the vehicle was driving recklessly, but he did not recall that nor did it refresh his memory.

PO Dieugenia did not have any independent recollection of which officers were present, except his memo book listed PO Biondilillo as being present, so he assumed he was there.

PO Dieugenia did not recall which side of the vehicle he approached after it was stopped. PO Dieugenia did not recall the make or the model of the vehicle and did not recall how many occupants were inside.

PO Dieugenia recalled no additional details of the vehicle stop. He was asked about the criminal possession of a weapon he noted in his memo book and he said he did not recall when he noticed a weapon, where the weapon was, what the weapon was, or anything else about the weapon. He did not know if he recovered the weapon or if another officer did. PO Dieugenia was asked if his notation in his memo book meant that he recovered the weapon and he said it might have, but it also could have meant another officer recovered the weapon.

CCRB Case # 201310595

Page 10

PO Dieugenia did not recall frisking or searching any occupants of the vehicle and added that he did not note in his memo book that he frisked or searched anyone. PO Dieugenia did not recall going inside of the vehicle at any point.

Witness Officer: PO ALEKSANDR PASYNKOV

- PO Pasynkov was § 87(2)(b) at the time of the interview. He is a white male, who § 87(2)(b) has brown hair and blue eyes.
- PO Pasynkov worked from 5:27 p.m., on November 1, 2013, until 2:00a.m., on November 2, 2013. He was a gang investigator working within the confines of the 67th Precinct. He worked with PO Dieugenia, was dressed in plainclothes, and worked out of an unmarked black Chevy Impala, number § 87(2)(f).

Memo Book (encl. 17A-B):

PO Pasynkov had no relevant memo book entries. At 6:20 p.m., he noted that his memo book was inspected and at 2:00 a.m., he ended his tour.

CCRB Statement:

On July 1, 2014, PO Pasynkov was interviewed at the CCRB (encl. 18A-C). § 87(2)(g)

PO Pasynkov corroborated PO Biondilillo and PO Smith's testimony regarding the factors leading to the car stop. PO Pasynkov approached the vehicle on the passenger's side and PO Dieugenia approached on the driver's side. PO Biondilillo was also on the passenger's side and PO Smith went to the driver's side. There may have been additional officers from PO Pasynkov's command present, but he did not recall.

PO Pasynkov remained near the trunk of the vehicle and did not see inside of the car. PO Pasynkov did testify that there were at least four occupants in the car and there may have been six. Within the first five to ten seconds, the occupants were asked to step out of the vehicle. PO Pasynkov said that his team usually asks occupants to step out one at a time and assumed that is what happened during this incident, but he did not recall with certainty.

As the occupants stepped out, PO Pasynkov remained by the rear of the car. About twenty to thirty seconds into the interaction, an officer, handcuffed one of the occupants. PO Pasynkov did not recall which officer, which occupant, or on which side. PO Pasynkov was told by an officer that two weapons were found, one on an individual and one in the vehicle. However, PO Pasynkov did not recall who told him that the weapons were found or who retrieved the weapon. PO Pasynkov did not recall seeing any officer go into the vehicle at any point, but he assumed someone did because a weapon was recovered inside. PO Pasynkov did not recall if any occupants were inside of the vehicle when the weapon was recovered. At no point did PO Pasynkov go inside of the car. After the weapon was recovered, there was no additional vehicle search.

After the weapons were recovered, PO Pasynkov frisked one or more of the occupants near the rear of the vehicle. PO Pasynkov did not recall which occupant he frisked and did not recall if anyone told him to conduct a frisk. At least one individual was handcuffed and a weapon had been recovered prior to the frisk, and because one weapon had been found, PO Pasynkov frisked the other occupants to ensure they were also not armed. PO Pasynkov did not search any individual. PO Pasynkov did not observe any frisks or searches taking place on the driver's side of the vehicle.

In total, two of the occupants were handcuffed and removed to the 70th Precinct stationhouse. One of the individuals arrested said that he uses the knife found for protection and that his mother told him to carry a weapon for safety. PO Pasynkov did not recall who said this or which side he was on.

The entire incident lasted about two to three minutes. PO Pasynkov transported one of the individuals back to the stationhouse. PO Pasynkov did not know what happened with the vehicle or if it was taken back to the stationhouse. PO Pasynkov did not drive it to the stationhouse. At the stationhouse, PO Pasynkov had no interaction with either of the arrested individuals.

Arrest for Incident and Disposition

- § 87(2)(a) 160.50 [REDACTED]
[REDACTED]
[REDACTED]

Status of Civil Proceedings

- Neither § 87(2)(b) nor § 87(2)(b) has filed a notice of claim with the City of New York as of August 5, 2014, well after the filing date expired, with regard to the incident (encl. 28).

Civilians Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) and the first complaint involving either § 87(2)(b) or § 87(2)(b) (encl. 6, 7).

Subject Officers CCRB History

- PO Biondolillo has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. 3).
- PO Dieugenia has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. 4).
- PO Pasynkov has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. 5). § 87(4-b) § 87(2)(g) [REDACTED]
[REDACTED]

Conclusion

Identification of Subject Officers

According to the officer statements, the investigation determined that PO Biondolillo and PO Pasynkov approached the Wiltshires' vehicle on the passenger's side, while PO Dieugenia and PO Smith approached on the driver's side. The § 87(2)(b) brothers stated that one officer took a primary role on each side. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED].

§ 87(2)(b) stated that the officer who took the primary role on the driver's side frisked and searched him and proceeded to search the vehicle. PO Dieugenia was on the driver's side of the car and according to PO Biondolillo's memo book, PO Dieugenia recovered the knife from

inside of the vehicle. PO Smith was also on the driver's side, but he stated he took a passive role.

§ 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Abuse of Authority—PO Anthony Biondolillo frisked § 87(2)(b)

It is undisputed that upon being stopped, § 87(2)(b) was asked to step out of the vehicle and PO Biondolillo frisked him. PO Biondolillo said that he frisked § 87(2)(b) to make sure that he was not armed. However, PO Biondolillo testified that there were no factors that led him to believe that § 87(2)(b) was armed. PO Biondolillo said that he was at a tactical disadvantage, as the civilians outnumbered the officers six to four and because he was not aware of what they had inside of the car. PO Biondolillo and PO Smith testified to movement inside of the car as he approached, however, neither was able to describe this movement and in no way indicated that the movement was indicative of hiding contraband inside of the car.

Police officers making routine traffic stops may frisk a driver and passengers upon reasonable suspicion that they are armed and dangerous. *Knowles v. Iowa*, 525 U.S. 113 (1998) (encl. 1A-E). A frisk may also be justified when the totality of circumstances leads to an actual and specific danger to the officer's safety. *People v. Feldman*, 114 AD3d 603 (1st Dept. 2014) (encl. 1F-G).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as *substantiated*.

Allegation B: Abuse of Authority—PO Paul Dieugenia frisked § 87(2)(b)

Allegation C: Abuse of Authority—PO Paul Dieugenia searched § 87(2)(b)

§ 87(2)(b) alleged that after he was asked to exit the vehicle, he was frisked and searched by PO Dieugenia. § 87(2)(b) thought it appeared that § 87(2)(b) was frisked. However, § 87(2)(b) could not describe the frisk in detail as he was on the opposite side of the car.

PO Dieugenia did not recall the incident and no other officer testified that they observed § 87(2)(b) frisked or searched. However, PO Biondolillo and PO Smith stated that within a minute of the vehicle stop, PO Dieugenia discovered a knife inside of the car. § 87(2)(g)

Therefore, it is recommended that **Allegations B and C** be closed as *unsubstantiated*.

Allegation D: Abuse of Authority—PO Paul Dieugenia searched the car in which § 87(2)(b)

and § 87(2)(b) **were occupants.**

Allegation E: Abuse of Authority—PO Anthony Biondolillo searched the car in which

§ 87(2)(b) **and** § 87(2)(b) **were occupants.**

§ 87(2)(b) stated that PO Dieugenia and PO Biondolillo searched his vehicle. § 87(2)(b) said that early on in the search, a knife was discovered from inside of the glove compartment, but the officers continued searching for about ten minutes. § 87(2)(b) corroborated that PO Dieugenia and PO Biondolillo searched the vehicle and found a knife inside of the glove compartment.

PO Biondolillo said that PO Dieugenia recovered a knife from the center console, but PO Biondolillo did not see PO Dieugenia recover the knife. The arrest report that PO Biondolillo prepared also listed that the knife was recovered from the center console. PO Biondolillo denied going inside of the car himself. PO Pasyukov and PO Smith confirmed that an officer recovered a knife from inside of the car, but neither officer knew where it was recovered or which officer recovered it. PO Dieugenia noted that a weapon was recovered from the center console in his memo book, but he had no recollection of this incident.

In addition to the knife recovered from inside of the vehicle, a knife was recovered from § 87(2)(b) s person, which PO Biondolillo vouchered. Neither § 87(2)(b) nor § 87(2)(b) made any mention of that knife in their CCRB statements, nor did they mention the four additional occupants in the vehicle.

§ 87(2)(g)

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted].

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted] It is therefore recommended that **Allegations D and E** be closed as ***unsubstantiated***.

§ 87(4-b) § 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date